Number 23 *of* 1999

ELECTRICITY REGULATION ACT 1999

REVISED

Updated to 31 December 2018

This Revised Act is an administrative consolidation of the *Electricity Regulation Act 1999*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Central Bank (National Claims Information Database) Act 2018* (42/2018), enacted 27 December 2018, and all statutory instruments up to and including *Criminal Justice (Suspended Sentences of Imprisonment) Act 2017 (Commencement) Order 2019* (S.I. No. 1 of 2019), made 3 January 2019, were considered in the preparation of this Revised Act.

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AN ACT TO ENABLE EFFECT TO BE GIVEN TO DIRECTIVE NO. 96/92/EC OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL OF 19 DECEMBER 1996[(1)], TO ESTABLISH A BODY KNOWN AS AN COIMISIÚN UM RIALÁIL LEICTREACHAIS OR IN THE ENGLISH LANGUAGE THE COMMISSION FOR ELECTRICITY REGULATION, TO GIVE POWER TO THAT COMMISSION TO GRANT LICENCES TO GENERATE AND SUPPLY ELECTRICITY AND TO GRANT AUTHORISATIONS TO CONSTRUCT GENERATING STATIONS, TO PROVIDE FOR ACCESS TO THE TRANSMISSION OR DISTRIBUTION SYSTEM BY HOLDERS OF LICENCES, HOLDERS OF AUTHORISATIONS OR BY ELIGIBLE CUSTOMERS, TO AMEND AND REPEAL CERTAIN PROVISIONS OF THE ELECTRICITY (SUPPLY) ACT, 1927 AND TO PROVIDE FOR RELATED MATTERS. [11*th July,* 1999]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART I

Preliminary And General

Short title and commencement.

1.—(1) This Act may be cited as the Electricity Regulation Act, 1999.

(2) This Act shall come into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

Interpretation.

2.—(1) In this Act, except where the context otherwise requires—

["Agency" means the agency set up under the Regulation (EC) 713/2009 of the European Parliament and of the Council;**]**

"authorisation" means an authorisation granted under *section 16*;

"authorised officer" means a person appointed under *section 11* to be an authorised officer;

["Authority" means Northern Ireland Authority for Utility Regulation;**]**

"Board" means the Electricity Supply Board;

[(1)] O.J. No. L. 027, 30.01.1997, p. 20

Amendment of section 45 of Principal Act.

43.—Section 45 of the Principal Act is hereby amended in paragraph (*a*) of subsection (5) by the insertion after "the Board" of "or a holder of an authorisation under *section 16* of the *Electricity Regulation Act, 1999*, as the case may be" and the paragraph as so amended is set out in the Table to this section.

TABLE

(5) A special order made under this section may incorporate—

(*a*) the Acquisition of Land (Assessment of Compensation) Act, 1919, with the modification that the expression "public authority" shall include the Board or a holder of an authorisation under *section 16* of the *Electricity Regulation Act, 1999*, as the case may be.

Amendment of section 77 of Principal Act.

44.—Section 77 of the Principal Act is hereby amended by the substitution for that section of the following section:

"Payment by local authorities of expenses of certain alterations.

77.—Whenever a local authority on account of or for the purpose of an alteration to a road or bridge—

(*a*) requires an authorised undertaker or a holder of an authorisation under *section 16* of the *Electricity Regulation Act, 1999*, or the holder of a direct line permission under *section 37* of the *Electricity Regulation Act, 1999*, to alter the position or depth of underground electrical wires, mains, or other electrical works or the position of poles or other structures carrying electrical wires or mains or other above ground electrical works, or

(*b*) requires the Board to alter the position or depth of any such underground electrical works or the position of any such above ground electrical works as aforesaid belonging to or under the control of the Board,

the expenses incurred by such authorised undertaker or holder of an authorisation under *section 16* of the *Electricity Regulation Act, 1999*, or holder of a direct line permission under *section 37* of the *Electricity Regulation Act, 1999*, or by the Board, as the case may be, in complying with such requisition shall be paid to such authorised undertaker or holder of an authorisation under *section 16* of the *Electricity Regulation Act, 1999*, or holder of a direct line permission under *section 37* of the *Electricity Regulation Act, 1999*, or to the Board, as the case may require, by such local authority or, demand as part of the expenses of the maintenance of such road or bridge and the amount of such expenses so to be paid to such authorised undertaker or holder of an authorisation under *section 16* of the *Electricity Regulation Act, 1999*, or holder of a direct line permission under *section 37* of the *Electricity Regulation Act, 1999*, or to the Board shall be fixed by an arbitrator appointed by the Commission for Electricity Regulation established under *section 8* of the *Electricity Regulation Act, 1999*.".

Amendment of section 98 of Principal Act.

45.—Section 98 of the Principal Act is hereby amended by the substitution for that section of the following section: